

**SUBSTITUTE FOR
HOUSE BILL NO. 5845**

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
by amending section 811 (MCL 168.811), as amended by 2023 PA 86.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 811. **(1)** All election returns, including poll lists,
2 statements, tally sheets, absent voters' return envelopes bearing
3 the statement required by section 761, absent voters' records
4 required by section 760, and other returns made by the election
5 inspectors of the several precincts must be carefully preserved and
6 may be destroyed after the expiration of 22 months following the
7 primary or election at which the same were used.

8 **(2)** All applications executed under section 523, all voter
9 registration applications executed by applicants under section



1 497(3) and (4), and all absent voters' applications must be
2 carefully preserved and may be destroyed after the expiration of 6
3 years following the primary or election at which those applications
4 were executed.

5 **(3)** All ballots used at any primary or election, other than
6 ballots containing a federal office, may be destroyed after 30 days
7 following the final determination of the board of canvassers with
8 respect to the primary or election unless a petition for recount
9 has been filed and not completed or unless the destruction of the
10 ballots is stayed by an order of a court. All ballots containing a
11 federal office, and all presidential primary ballot selection
12 forms, may be destroyed after the expiration of 22 months following
13 the primary or election at which those ballots were cast or forms
14 were used.

15 **(4)** All data contained on an electronic poll book flash drive
16 used at any primary or election must be carefully preserved for 22
17 months following the primary or election at which the electronic
18 poll book flash drive was used, and may only be erased, and the
19 electronic poll book flash drive reused, after the expiration of 22
20 months following the primary or election at which the electronic
21 poll book flash drive was used.